

MASTER SERVICES AGREEMENT

1. PARTIES AND EFFECTIVE DATE

This Master Services Agreement (the "Agreement") is entered into as of March 14, 2024 (the "Effective Date") by and between Northwind Analytics, LLC, a fictional limited liability company with offices at 4120 Sample Way, Testville, Ohio ("Provider"), and Blue Harbor Logistics, Inc., a fictional corporation with offices at 88 Placeholder Avenue, Testville, Ohio ("Customer").

Provider and Customer are each referred to as a "Party" and collectively as the "Parties". This document is synthetic sample text created only for software testing.

2. SCOPE OF SERVICES

Provider shall perform the analytics and reporting services described in one or more mutually executed statements of work (each, an "SOW"). Each SOW shall reference this Agreement and shall describe the deliverables, acceptance criteria, and fees applicable to that engagement.

In the event of a conflict between this Agreement and an SOW, this Agreement controls unless the SOW expressly states that it supersedes a specific numbered section of this Agreement.

3. FEES AND PAYMENT

Customer shall pay Provider the fees stated in the applicable SOW. Unless an SOW states otherwise, Provider shall invoice monthly in arrears and Customer shall pay each undisputed invoice within thirty (30) days of receipt.

Late amounts accrue interest at the lesser of one percent (1%) per month or the maximum rate permitted by applicable law. Fees are exclusive of taxes, and Customer is responsible for applicable sales and use taxes other than taxes on Provider's net income.

4. TERM AND TERMINATION

The initial term of this Agreement is twenty-four (24) months from the Effective Date and renews for successive twelve (12) month periods unless either Party gives written notice of non-renewal at least sixty (60) days before the end of the then-current term.

Either Party may terminate this Agreement for material breach if the breaching Party fails to cure the breach within thirty (30) days after written notice describing the breach in reasonable detail.

5. CONFIDENTIALITY

Each Party shall protect the other Party's Confidential Information using at least the degree of care it uses to protect its own confidential information of similar importance, and in no event less than reasonable care.

Confidential Information does not include information that is or becomes publicly available without breach of this Agreement, was known to the receiving Party without restriction before disclosure, or is independently developed without use of the disclosing Party's Confidential Information.

6. LIMITATION OF LIABILITY

Except for a Party's indemnification obligations and breaches of confidentiality, neither Party is liable for indirect, incidental, special, consequential, or punitive damages, even if advised of the possibility of such damages.

Each Party's aggregate liability arising out of or related to this Agreement shall not exceed the total fees

paid or payable by Customer under the applicable SOW during the twelve (12) months preceding the event giving rise to the claim.

7. GOVERNING LAW AND NOTICES

This Agreement is governed by the laws of the State of Ohio without regard to its conflict of laws principles. The Parties consent to the exclusive jurisdiction of the state and federal courts located in Testville, Ohio.

Notices must be in writing and are effective upon receipt when delivered to the addresses listed in Section 1 or to such other address as a Party designates in writing.

8. ENTIRE AGREEMENT

This Agreement, together with all SOWs, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior proposals and understandings, whether written or oral.

No amendment is effective unless in writing and signed by an authorized representative of each Party. This sample document ends here.